

02:00 PM **LINE 6**

25-CIV-03556

DOMINIC HIGBEE-GONSALVES VS. ISHAR INVESTMENTS, INC.et al.

DOMINIC HIGBEE-GONSALVES
ISHAR INVESTMENTS, INC.

IRINA BAGHDASARYAN
BRENDAN SAPIEN

Motion to Compel Deposition of Defendant's Person Most Knowledgeable

TENTATIVE RULING:

Plaintiff Dominic Higbee-Gonsalves' motion to compel PMK deposition is **GRANTED**. Plaintiff's request for sanctions against defendant Ishar Investments, Inc., and its attorney of record, O'Hagan Meyer LLP, is also **GRANTED**.

A. Background

On August 1, 2025, plaintiff served defendant Ishar Investments, Inc., with a Notice of PMK Deposition, set for October 31, 2025. (Begakis Decl., ¶ 2, exh. A.) On October 21, 2025, plaintiff's counsel emailed defendant's counsel to confirm that the PMK deposition would go forward as noticed. (Id., ¶ 3, exh. B.) Plaintiff's email included an offer that the deposition could be moved to a date within 30 days of the scheduled date, if requested within three days. (*Ibid.*)

On October 29, 2025, plaintiff's counsel followed up on the courtesy email reminder and Defense counsel responding by stating that his client was unavailable and that he would provide potential alternative dates shortly. (Begakis Decl., ¶ 4, exh. C.) Plaintiff's counsel responded by stating that no timely objections had been made and that if new dates were not sent by the next day, plaintiff would move forward with the deposition and take a non-appearance. (*Ibid.*)

On October 30, 2025, at 5:00 p.m., plaintiff's counsel emailed defendant's counsel following up on the request for deposition dates. (Begakis Decl., ¶ 4, exh. C.) On October 31, 2025, defendant's counsel responded: "I will be getting you deposition dates by next week." (*Ibid.*) Plaintiff proceeded with the deposition and took a non-appearance. (*Id.*, exh. D.)

On December 5, 2025, defendant sent a formal meet and confer letter to plaintiff regarding defendant's failure to appear and failure to provide firm dates for the PMK deposition. (*Id.*, ¶ 6, exh. E.)

On December 19, 2025, plaintiff filed a motion to compel the PMK deposition. (Liu Decl., ¶ 2.) The motion was ordered off the calendar so that the parties could engage in an Informal Discovery Conference on the matter. (*Ibid.*) At the IDC hearing on February 3, 2026, the Commissioner recommended that the PMK deposition take place within four weeks and authorized plaintiff to file a motion to compel. (*Id.*, ¶ 3, exh. G.)

On February 10, 2026, plaintiff's counsel sent defendant's counsel a letter summarizing the Commissioner's recommendation and asking for proposed dates – to be provided by February 13, 2026 – for the deposition to be held on or before March 3, 2026. (Liu Decl., ¶ 4, exh. H.) On February 22, 2026, plaintiff filed the instant motion, having received no response from defendant. (Liu Decl., ¶ 5.)

B. Legal Standards

“Any party may obtain discovery . . . by taking in California the oral deposition of any person, including any party to the action.” (Code Civ. Proc., § 2025.010.) The service of a deposition notice “is effective to require any deponent who is a party to the action . . . to attend and to testify, as well as to produce any document . . . for inspection and copying.” (*Id.*, § 2025.280, subd. (a).) A party may move for a court order compelling a deponent's attendance and testimony if the deponent fails to appear for their deposition. (*Id.*, § 2025.450, subd. (a).) In such cases, the motion must be accompanied “by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance.” (*Id.*, subd. (d); *Leko v. Cornerstone Building Inspection Service* (2001) 86 Cal.App.4th 1109, 1124.)

Under Code of Civil Procedure, section 2025.450, a person who fails to appear for their deposition may be subject to monetary sanctions, provided the court does not find that the party subject to sanctions acted with substantial justification. (*Id.*, subd. (g).)

Defendant argues that the motion is moot because defendant has agreed to produce a PMK witness. Defendant misses the point. Defendant failed to appear at a duly noticed deposition and, based on the record before the court, has repeatedly failed to provide dates for which the deposition could be held. The deposition has still not taken place. This motion is not moot.

Defendant's counsel argues that he was substituted as counsel in “September of 2025” and that he was “getting up to speed in this matter” and had “informed Plaintiff of the need for additional time to review this matter and . . . prepare for the deposition of Defendant's PMK.” (Sapient Decl., ¶¶ 3, 5, 6.) A substitution of attorney regarding current defense counsel was filed on September 10, 2025 – 51 days prior to the scheduled deposition date. (See Substitution of Counsel, filed September 10, 2025.)

While it is understandable that defendant's counsel wanted more time to prepare for the deposition, it is unclear whether counsel ever made such a request to plaintiff. Defendant's counsel states that he informed plaintiff's counsel of the need for more time but does not provide any details regarding that correspondence or when it occurred – and counsel does not specifically state that he ever requested that the deposition date be moved back. Moreover, on October 21, 2025, plaintiff expressly offered via email to re-notice a later deposition date if necessary:

[W]e are amenable to re-noticing the deposition to a new date provided your client offers availability within 30 days of the originally noticed date. If you wish to pursue this option, please provide your client's availability within the next three (3) business days.

(Begakis Decl., ¶ 3, exh. B.)

It appears that defendant's counsel never responded to that offer. Still, on October 29, 2025, after defendant's counsel informed plaintiff's counsel that his client was not available for the PMK deposition, plaintiff's counsel asked that defense counsel provide dates of availability by the following day. Defense counsel failed to do so, even after plaintiff sent a follow-up e-mail at the close of business the next day. Defense counsel informed plaintiff's counsel the morning of the deposition, "I will be getting you deposition dates by next week." (*Id.*, exh. C, at p. 1.) He never did. (Begakis Decl., ¶ 4.)

The record before the court does not show that defendant's counsel ever requested that the deposition date be continued. Rather, the record shows that defendant's counsel had numerous opportunities to propose alternative dates — both before and after the originally noticed date — and failed to do so. Defendant has not provided any reason why this motion to compel should be denied.

Plaintiff requests sanctions totaling \$7,020.00 against defendant Ishar Investments, Inc. and its counsel of record, O'Hagan Meyer LLP, jointly and severally, comprising:

- \$620.00 for the court reporter's wasted attendance and Certificate of Non-Appearance;
- \$3,250.00 for the work of Christina Begakis, Esq., representing 5.0 hours at a billing rate of \$650.00 per hour, which includes preparing for and attending the remote deposition on October 31, 2025, drafting the initial meet-and-confer correspondence, and drafting the initial motion to compel; and
- \$3,150.00 for the work of Junlin Liu, Esq., representing 7.0 hours at a billing rate of \$450.00 per hour, including 1.5 hours preparing the written brief for and attending the February 3, 2026 Informal Discovery Conference; 0.5 hours drafting the post-IDC meet-and-confer correspondence sent on February 10, 2026; 3.0 hours updating, revising, and finalizing this Motion to Compel, the Memorandum of Points and Authorities, and the supporting declarations; and 2.0 hours anticipated to review Defendant's opposition, draft a reply brief, and attend the Law and Motion hearing.

(See Begakis Decl., ¶ 7; Liu Decl., ¶ 6.)

Defendant argues that request for sanctions is "inflated." However, defendant has provided no basis for that argument, other than to point out that the original motion — before the IDC — requested \$3,870.00 in sanctions. This argument is not compelling. Obviously, the IDC and subsequent revised motion to compel would not have been necessary had defendant provided dates for the deposition to take place.

Plaintiff's request for sanctions is reasonable. (*Spencer v. Collins* (1909) 156 Cal. 298, 307 ["The value of attorney's services is a matter with which a judge must necessarily be

familiar. When the court is informed of the extent and nature of such services, its own experience furnishes it with every element necessary to fix their value.”].)

Accordingly, plaintiffs’ motion to compel is **GRANTED**. Upon serving all parties with notice of the order on this motion, or thereafter, plaintiff may serve a notice for the PMK deposition previously scheduled for October 31, 2026.

Plaintiff’s request for sanctions is **GRANTED** in the amount of \$7,020.00 against defendant Ishar Investments, Inc., and O’Hagen Meyer LLP, jointly and severally, to be paid to Dominic Higbee-Gonsalves within ten (10) days of notice of entry of this order.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiff’s counsel shall prepare a written order consistent with the court’s ruling for the court’s signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

02:00 PM **LINE 7**

25-CIV-08271

KIRSTEN BOLLEN ARPAJIAN VS. SCOTT LOEWEN ARPAJIAN

KIRSTEN BOLLEN ARPAJIAN
SCOTT LOEWEN ARPAJIAN

ETHAN M. WEISINGER
LUIS M MONTES

Motion re California Court's Jurisdiction re Spanish Divorce Decree

TENTATIVE RULING:

Petitioner Kristen Bollen Arpajian's petition to domesticate the Barcelona divorce decree is **DENIED without prejudice**. As noted below, the court will enforce orders issued by the court in Barcelona if requested by that court pursuant to appropriate international legal assistance requests.

Specially-appearing respondent Scott Arpajian seeks judicial notice of certain documents filed in this court and the court in Barcelona pursuant to Evidence Code, sections 452, subdivisions (d) and (h), 453, and 1530, subdivision (a)(1). Where the original documents were in Spanish, respondent has supplied English-language translations. Petitioner has not opposed the request. Accordingly, respondent's request is **GRANTED in part**. The court takes judicial notice of exhibits A-D, F-G, K, M (Barcelona court's orders); E (San Mateo Superior Court ruling); H-J (parties' filings in Barcelona court).

The court takes judicial notice of the legal effect of the Barcelona court's orders. The court takes judicial notice of the fact that exhibits H-J were filed by the parties with the Barcelona court, but they are not noticed for the truth of the contents therein. The court does not take judicial notice of exhibit L, the "Legal Report of Respondent's Spanish legal counsel Carolina Cendros Camara."

Petitioner Kristen Arpajian and specially-appearing respondent Scott Arpajian were married in San Francisco in 2002 and divorced in Spain in 2022. Neither party disputes that their divorce decree was issued by a court of competent jurisdiction in Barcelona, Spain. Nor does there appear to be any dispute that Mr. Arpajian has lived in Spain for many years. The proof of service filed by Ms. Arpajian indicates that Mr. Arpajian was personally served with the petition in this matter in Barcelona. Neither party has addressed whether he has had sufficient contacts with California to permit the court to exercise personal jurisdiction over him for purposes of this petition.

Petitioner asks this court to "domesticate" their divorce decree; respondent opposes. The court asked the parties for briefing regarding this court's jurisdiction over the Spanish divorce decree.
